

The Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 2002

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The Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 2002

Rule THE-BUREAU-OF-INDIAN-STANDARDS-RECRUITMENT-TO-SCIENTIFIC-CADRE-REGULATIONS-2002 of 2002

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The Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 2002

Published vide Notification No. G.S.R. 326(E), dated 3rd May, 2002

Bureau of Indian Standards

G.S.R. 326(E). - In exercise of the powers conferred by section 38 of the Bureau of Indian Standards Act, 1986 (63 of 1986) and in supersession of the Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 1988, except as respects things done or omitted to be done before such supersession, the Executive Committee of the Bureau of Indian Standards, with the previous approval of the Central Government, hereby makes the following regulations, namely:

1.

Short Title and Commencement.

(1)

These regulations may be called the Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 2002.

(2)

Save as otherwise provided in these regulations, they shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires. -

(a)

"Act" means the Bureau of Indian Standards Act, 1986 (63 of 1986);

(b)

"Assessment Committee" means a Committee appointed by the Director General for the purpose of assessment of merit and performance of officers in Scientific Cadre for their promotion to next higher post;

(c)

"rules" means the Bureau of Indian Standards Rules, 1987;

(d)

"Schedule" means a Schedule appended to these regulations;

(e)

"Scheduled Castes" and "Scheduled Tribes" shall have the same meanings as are respectively assigned to them in clauses (24) and (25) of article 366 of the Constitution of India;

(f)

"Scientific Cadre" means the Cadre of Group 'A' officers appointed to posts specified in the First Schedule;

(g)

"Screening Committee" means the Committee constituted under regulation 8;

(h)

"Selection Committee-A" means the Committee constituted under sub-regulation (2) of regulation 7 of the Bureau of Indian Standards (Terms and Conditions of Service of Employees) Regulations, 1988;

(i)

"Standing Staff Committee" means the Committee constituted under sub-regulation (1) of regulation 7 of the Bureau of Indian Standards (Terms and Conditions of Service of Employees) Regulations, 1988; and

(j)

words and expressions used in these regulations and not defined but defined in the Act or the rules shall have the meanings respectively assigned to them in the Act and the rules.

3.

Constitution of the Scientific Cadre.

- There shall be constituted a Scientific Cadre to be called the 'Bureau of Indian Standards Scientific Cadre' consisting of persons appointed to the posts specified in column (2) of the First Schedule and in the disciplines as given in the Second Schedule of these regulations.

4.

Members of the Scientific Cadre.

- The following persons shall be the members of the Scientific Cadre, namely:

(a)

persons from the erstwhile Indian Standards Institution Service Cadre shall be deemed to be members of the Scientific Cadre. The service rendered in Indian Standards Institution Service Cadre shall be counted as service under the Scientific Cadre in the equivalent post; and

(b)

persons appointed under these regulations.

5.

Method of Recruitments.

- The method of recruitment to the post of Scientist-B in the Scientific Cadre, scale of pay, age limit, qualifications and other matters relating thereto shall be as specified in the First Schedule.

6.

Direct Recruitment of Scientist-B.

(1)

Direct recruitment to the post of Scientist-B shall be made by competitive examination in the manner laid down in sub-regulation (2).

(2)

(a)

Vacancies of Scientist-B shall be advertised on All-India basis in the leading newspapers giving, among others, full information regarding number of posts, reservation for Scheduled Castes, Scheduled Tribes and Other Backward Classes, prescribed qualifications and age requirement.

(b)

Candidates possessing a minimum qualification of Bachelor's Degree in Engineering or Technology or a Master's Degree in Natural Sciences or equivalent with not less than sixty percent marks (fifty percent for Scheduled Castes and Scheduled Tribes) and between twenty-one and twenty-seven years of age shall be eligible for the post:

Provided that the upper age limit may be relaxed in case of officers and the employees of the Bureau and in respect of such categories of persons as may, from time to time, be notified in this behalf by the Central Government to the extent and subject to the conditions notified in respect of each category.

(c)

A written examination shall be conducted by the Bureau through a professional institution or agency on dates and at places to be decided by the Director General.

(d)

The number of candidates to be called for interview shall be not more than four times the number of vacancies advertised in the respective disciplines in order of merit from among those who have secured at least fifty percent marks in the written examination.

(e)

Candidates shall be selected discipline-wise by the Selection Committee-A on the basis of merit as determined by the aggregate marks obtained by giving equal weightage to written examination and interview.

(f)

The candidates belonging to any of the Scheduled Castes or the Scheduled Tribes or Other Backward Classes may, to the extent the number of vacancies reserved for the Scheduled Castes, the Scheduled Tribes and Other Backward Classes cannot be filled on the basis of the criteria laid down in clauses (c), (d) and (e) of sub-regulation (2), be selected by giving relaxation to make up the deficiency in the reserved quota, subject to suitability of these candidates for selection.

(g)

A candidate, on appointment to the post of Scientist-B through competitive examination, shall furnish a surety bond in the form specified by the Bureau, for serving the Bureau for a minimum period of three years. If he decides to leave the service either by resignation or absence from service without permission earlier than three years from the date of employment, he shall be required to reimburse the Bureau six months' emoluments at the rate last drawn by him unless he has worked for a shorter period in which case he shall be required to reimburse the full amount drawn by him.

(3)

(a)

Notwithstanding anything contained in sub-regulation (1), the Executive Committee may decide to fill by selection such number of existing vacancies in the post of Scientist-B, as considered necessary, to meet any exigency of work.

(b)

These vacancies shall be advertised on All-India basis in the leading newspapers giving, among others, full information about number of posts, reservation for Scheduled Castes, Scheduled Tribes and Other Backward Classes, prescribed qualifications, experience and the age requirement.

(c)

Candidates possessing a Bachelor's Degree in Engineering or Technology or a Master's Degree in Natural Sciences or

equivalent with not less than sixty percent marks (fifty percent for Scheduled Castes and Scheduled Tribe candidates) and practical experience of at least three years shall be eligible for the post. The age requirement shall be not more than thirty years:

Provided that the upper age limit and experience may be relaxed in case of the departmental candidates and in respect of such categories of persons as may from time to time be notified in this behalf by the Central Government to the extent and subject to the conditions notified in respect of each category.

(d)

Candidates who fulfill the prescribed requirements and are approved by the Screening Committee under regulation 8 shall be called for selection which shall include interview or written test and interview.

(e)

Candidates shall be selected discipline-wise by the Selection Committee-A on the basis of merit as determined by the selection referred to in clause (d).

(f)

The candidates belonging to any of the Scheduled Castes or the Scheduled Tribes or Other Backward Classes, may to the extent the number of vacancies reserved for the Scheduled Castes, the Schedule Tribes and Other Backward Classes cannot be filled on the basis of the criteria laid down in clause (e), be selected by giving relaxation to make up the deficiency in the reserved quota, subject to suitability of these candidates for selection.

(4)

The candidates appointed under this regulation shall be on probation for a period of two years during which the Director General shall arrange to give them such training and responsibilities as deemed necessary and prescribe departmental examination or examinations to be passed for successful completion of probation. Other conditions of probation as giving in Bureau of Indian Standards (Terms and Conditions of Service of Employees) Regulations, 1988 shall apply.

7.

Direct Recruitment by Selection to Other Posts.

(1)

Any recruitments by lateral entry through deputation/direct recruitment at the level of Scientist-G and above, upto Scientist-G, shall be done after ascertaining that the total sanctioned strength of the cadre is not exceeded and after prescribing the age, qualification and experience, as appropriate.

(2)

Vacancies shall be advertised in the leading newspapers giving, among others, full information regarding number of posts, reservation for the Scheduled Castes, the Scheduled Tribes and other Backward Classes, prescribed qualifications, age-limit and experience.

(3)

Candidates possessing the prescribed qualifications, experience and age limit shall be eligible for the post:

Provided that upper age limit may be relaxed in case of the officers and employees of the Bureau and in respect of such categories of persons as may, from time to time, be notified this behalf by the Central Government to the extent and subject to the conditions notified in respect of each category:

Provided further that the upper age limit shall be relaxed for Departmental candidates upto 50 years for the posts for which the prescribed age limit is less than 50 years, and by five years for posts for which the prescribed age limit is 50 years or more.

(4)

Candidates who fulfill the prescribed requirements and are approved by the Screening Committee under regulation 8 shall be called for selection.

(5)

The candidates belonging to any of the Scheduled Castes or the Scheduled Tribes or Other Backward Classes may, to the extent the number of vacancies reserved for the Scheduled Castes, the Scheduled Tribes and Other Backward Classes, cannot be filled on the basis of the criteria laid down in sub-regulation (4), be selected by giving relaxation to make up the deficiency in the reserved quota, subject to suitability of these candidates for selection.

(6)

It shall be permissible to draw a reserved list of successful candidates for filling vacancies which shall remain valid for a period of one year from the date such list is drawn.

(7)

The probation and other terms and conditions of probation of candidates so appointed shall be in accordance with the Bureau of Indian Standards (Terms and Conditions of Service of Employees) Regulations, 1988.

8.

Screening Committee.

- Applications received in response to the advertisement for posts to be filled by direct recruitment by selection shall be screened by the Screening Committee consisting of the Director General, one of the nominees of the Executive Committee on the Standing Staff Committee and an officer of the Bureau to be nominated by the Director General. The candidates as approved by the Screening Committee shall be called for selection.

9.

Promotion to the Posts up to Scientist-G.

(1)

The selection for promotions shall be made from amongst the Scientific Cadre officers serving in the next lower grade by the Assessment Committee appointed by the Director General under sub-regulation (2) Selection of officers for promotion shall be made in the same manner as laid down in the Scheme of Flexible Complementing formulated from time to time by the Central Government for promotion of scientists in Scientific Organizations under the Central Government and shall be effective from the date of eligibility. The Scheme of Flexible Complementing as formulated by the Central Government vide OM No.2/41/PIC-97 dated the 9th November, 1998 would be effective for Scientific Cadre Officers upto and inclusive of the level of Scientist-E from 9th November, 1998 and for the levels of Scientist-F and Scientist-G, the date of promotion would be effective from the date of Gazette Notification of this revised regulation. The recommendations of the Assessment Committee shall be approved by Director General.

(2)

(a)

Director General shall constitute Two Assessment Committees as follows:

I. For assessment for promotion of Scientist-B to Scientist-C, Scientist-C to Scientist-D and Scientist-D to Scientist-E; The Assessment Committee shall consist of the following members, namely:-

(1)

A Chairman to be nominated by the Director-General;

(2)

two officers from the Bureau of Indian Standards not below the rank of Scientist-F; and

(3)

two experts from outside of whom one shall belong to the Scheduled Caste or Scheduled Tribe category.

II. For assessment for promotion of Scientist-E to Scientist-F and Scientist-F to Scientist-G.

The Assessment Committee shall consist of the following members, namely:-

(1)

Director General, who shall be the Chairman of the Committee.

(2)

Representative of the Ministry of Finance on the Bureau.

(3)

A representative of the Ministry or Department of the Central Government having administrative control of the Bureau,

(4)

Two members of the Executive Committee represented on Standing Staff Committee, and

(5)

Two experts from outside of whom one shall belong to the Scheduled Caste or Scheduled Tribe category.

10.

Authorized Strength.

- Authorized strength shall be such as may be determined from time to time by the Executive Committee with the approval of the Central Government. The cadre strength shall specify the number of posts to be covered under Scientist B, C, D, E, F and G as a whole and is 579 as on 30th September, 1987 and is given in the First Schedule.

11.

Power to Relax.

- Where the Executive Committee is of the opinion that it is necessary or expedient so to do, it may, with the approval of the Central Government for reasons to be recorded in writing, relax any of the provisions of these regulations in respect of any class or category of persons.

12.

Saving.

- Nothing in these regulations shall affect reservations, relaxations of age limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes, Ex-servicemen and other special categories of persons in accordance with the orders issued by the Central Government from time to time in this regard.

13.

Interpretation.

- If any question relating to interpretation of these regulations arises, it shall be decided by the Executive Committee with the approval of the Central Government.

First Schedule

(See Regulation 3, 5 and 10)

Sl No.

Name of Post and Scale of pay @

Name of Posts

Method of Filling the Post

Maximum Age Limit for Direct Recruitment

Educational Qualifications for Direct

Recruitment

Experience for Direct Recruitment

Promotion Eligibility

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

1

Scientist B Rs.

8,000-275-13,500

**

(i) 90% of posts by
direct recruitment

-
-
-
-

(a) By competitive
examination

21-27 years

Essential? A Bachelor's degree in
Engineering or Technology or Master's Degree in Natural Sciences
or equivalent with 60% marks in the aggregate in discipline
specified in the Second Schedule

NIL

Not applicable

(b) By selection

30 years

Essential? A Bachelor's Degree in Engineering or Technology or Master's Degree in Natural Sciences or equivalent with 60% marks in aggregate in discipline specified in the Second Schedule

3-years' experience in the field of standardization / Quality System/ Testing/ Production/ Design/ Research

Not applicable

(ii) 10% of posts by promotion from Group 'B' Posts in accordance with the procedure to be prescribed by the Executive Committee

50 years

Not applicable

Note applicable

a) A Bachelor's Degree in Engineering or Technology or Master's Degree in Natural Sciences or equivalent with 50% marks in aggregate in discipline specified in the Second Schedule(b) Ten year's experience as Senior Technical Assistant or ten years' combined experience as Senior Technical Assistant/ Technical Supervisor in the Laboratory Technical Posts Cadre or ten years experience as Senior Technical Assistant (Drawing)/ Supervisor (Drawing)

2

Scientist - C Rs

10,000-325-15,200

**

Promotion/ Deputation

-
-
-

As per Flexible

Complementing Scheme for Scientific organizations formulated by central Government

3

Scientist ? D

Rs. 12,000-375-16,500

**

Promotion/ Deputation

-
-
-

As per Flexible

Complementing Scheme for Scientific organizations formulated by central Government

4

Scientist ? E

Rs. 14,300-400-18,300

**

Promotion/ Deputation

-

-

-

As per Flexible

Complementing Scheme for Scientific organizations formulated by
central Government

5

Scientist ? F

Rs. 16,400-450-20,000

**

Promotion/ Deputation

-

-

-

As per Flexible

Complementing Scheme for Scientific organizations formulated by
central Government

6

Scientist ? G

Rs. 18,400-500-22,400

**

Promotion/ Deputation

-

-

-

As per Flexible

Complementing Scheme for Scientific organizations formulated by
central Government

**Total number of posts under SI No. 1 to 6 is 579.

@ The scale of pay to be effective from 1st January, 1996 i.e. the date of implementation of Fifth Pay Commission.
Second Schedule

(See Regulation 3)

List of disciplines for the purposes of recruitment to the Bureau of Indian Standards Scientific Cadre:

Science Courses

1. Agriculture/ Agronomy/Entomology/Food/Toxicology
2. Chemistry/Bio-Chemistry/Toxicology
3. Micro Biology
4. Physics/Applied Physics/Telecommunications
5. Mathematics/Statistics/Operational Research
6. Computer Applications/Computer Sciences/Computer Engineering
7. Home Science/Nutrition

Engineering/Technology Courses

1. Civil/Structure/Architecture/Timber/Refractories
2. Mechanical/Aeronautical/Automobile/Mining
3. Electrical
4. Electronics/Telecommunications/Computer/Instruments
5. Marine
6. Agriculture/Food/Dairy
7. Chemical/Metallurgical/Fuel/Petro-Chemical
8. Leather/Footwear
9. Jute/Textiles/Textile Chemistry
10. Bio-Engineering/Energy/Environment and Pollution

11. Ceramics/Glassware/Plastics/Rubber

Explanatory Memorandum

1. The Scheme of Flexible Complementing (FCS) was earlier introduced based on the guidelines issued by the Department of Science and Technology (DST) in November, 1983 for all Scientific and Technical Organizations/Institutions of the Government of India, which was later modified vide Department of Science & Technology's OM No. A.42014/2/86-Admn. 1(A) dated the 28th May, 1986. According to this scheme, the promotion of an officer in scientific service from one grade to the next higher grade would take place after a prescribed period of five years residency service on the basis of assessment procedure as laid down by individual organization. Promotions made under this scheme would be in-situ and with effect from the date of their eligibility as per the residency period and personal to the officer concerned irrespective of the occurrence of the vacancy in the higher grade. Accordingly, in Bureau of Indian Standards, all Scientific Cadre Officers were considered eligible for promotion from one grade to the next higher grade after they had put in 5 years of residency service in that grade. Thereafter, based on the assessment procedure as laid down by the Executive Committee of Bureau of Indian Standards, which shall take into account qualifications, performance, merit, seniority, potential, annual confidential reports for previous five years and interview by the Assessment Committee appointed by the Director General the officers would be promoted to the next higher grade as per their date of eligibility,

2. Bureau of Indian Standards being recognized as a Scientific and Technical Organization by the Science Advisory Committee to the Cabinet (SACC), the Flexible Complementing Scheme, which was introduced in all Scientific and Technical Organizations/Institutions of the Government, was implemented in Bureau of Indian Standards as well for its Scientific Cadre Officers. Five levels of Scientific Cadre Officers, namely, Assistant Director, Deputy Director, Joint Director, Director and Director (Selection Grade) were covered under Flexible Complementing Scheme, whereas the next two higher levels, namely, Deputy Director General and Additional Director General were under vacancy based scheme. These aspects are covered in the Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 1988 applicable to Scientific Cadre Officers.

3. In accordance with the recommendations of the Fifth Pay-Commission (FPC), the pay scales corresponding to all levels of Scientific Cadre Officers were revised w.e.f. 1st January, 1996. It is, therefore, required to modify the existing pay scales to bring them in line with the revised pay scales as recommended by Fifth Pay Commission w.e.f. 1st January, 1996 in the existing Regulations.

Further, in accordance with the sub-regulation (2) of regulation 9 of the Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 1988, the promotion of selected officers to the next higher grade up-to Director (Selection Grade)/(System Scientist-E) shall be made in the same manner as laid down in the Scheme of Flexible Complementing formulated from time to time by the Department of Science and Technology for promotions of Scientists in Scientific Organizations under the Central Government and shall be effective from the date of eligibility. Accordingly, the Scheme of Flexible Complementing which has now been modified vide DOPT's OM No.2/41/97-PIC dated the 9th November, 1998 is to be followed in Bureau of Indian Standards, being a Scientific and Technical Organization, for considering promotion of Scientific Cadre Officers. It is, therefore, required to change the relevant provision of this regulation to bring it in line with the modified Flexible Complementing Scheme brought out by the Government vide DOPT's OM No.2/41/97-PIC dated the 9th November, 1998. Even though, the Notification of the Government dated the 9th November, 1998 deemed to have become effective in Bureau of Indian Standards immediately on the Notification of the said OM by virtue of sub-regulation (2) of regulation 9 of Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 1988 but due to the provision of sub-regulation (1) of regulation 9 now becoming redundant in view of the DOPT's OM No.2/41/97-PIC dated the 9th November, 1998 and sub-regulation (2) of regulation 9 as mentioned above, it became necessary to amend the said Regulation suitably so as to give complete effect to the Notification of the Government dated the 9th November, 1998. Since amendment to other related provisions has taken some time and also because of the Notification dated the 9th November, 1998 coming into force immediately on the said date, it is necessary and would be within the legal provision that the present amendment to the Regulation giving effect to the modified Flexible Complementing Scheme dated the 9th November, 1998 be given retrospective effect so as to make it effective from 9th November, 1998. This would also be in line with sub-regulation (2) of regulation 9 of the Bureau of Indian Standards (Recruitment to Scientific Cadre) Regulations, 1988.

4. This has been modified to bring in uniformity in the Scheme of Flexible Complementing, as being followed in all recognized Scientific and Technological Departments, in the matter of designation of posts, the number of pay scales,

the residency period and the assessment norms in accordance with the provisions laid down in DOPT's OM No.2/41/97-PIC dated the 9th November, 1998.

5. Further, in view of the decision of Executive Committee of Bureau of Indian Standards to include two more levels, namely that of Deputy Director General (Scientist-F) and Additional Director General (Scientist-G) also under the ambit of Flexible Complementing Scheme, which earlier were vacancy based, the modified Flexible Complementing Scheme is being made effective in this case only prospectively, since these two levels have recently come under the Flexible Complementing Scheme in the revised regulation.

6. The rights of none will be prejudicially affected by reason of retrospective effect being given to the regulations.

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